China Basin Owners Association
FINES & ENFORCEMENT POLICY

POLICY DISCLAIMER:
The Board of Directors has adopted this China Basin Fines & Enfocement Policy as an addendum to the DCC&Rs and other governing documents for this Association and therefore, a violation of this policy can be considered a violation of the DCC&Rs and the deed, as applicable by the current laws and ordinances of the United States, State of California and of the Ordinances of the City of San Francisco, and all its agencies.

The Board of Directors has adopted this China Basin Fines & Enfocement Policy for purposes of maintaining the highest possible Quality of Life for, and to maintain the safest environment and practices for its Owners and Residents.

SCHEDULE OF MONETARY PENALTIES FOR VIOALTIONS OF HOUSE RULES AND DEED RESTRICTIONS

First Offense: $0.00
Second Offense: $0.00
Third Offence: $0.00
Fourth Offense: Call to a Hearing with the possible outcome being the Association levying a fine against the violating Homeowner of $100.00 for each like repeated offense of the same rule violation.

Each rules shall be considered a separate rule violation with its own unique or separate fine. For example: a Homeowner who stuffs boxes down the trash chute, but who also commits a smoking / vaping violation, opens up the potential of being fined $100. for each separate violation.

OWNER RESPONSIBILITY
Each owner ("Owner") of a condominium unit within China Basin Homeowners Association ("Association") is responsible for complying with the Governing Documents, policies, rules and addendums, which include the Articles of Incorporation, Bylaws, Declaration of Covenants, Conditions and Restrictions ("CC&Rs"), Rules, Operating Rules ("Governing Documents".) The term "Owner" is synonymous with the terms "Homeowner" and "Member." Owners are also responsible for ensuring that their family members, guests, invitees comply with the Governing Documents and that their unit is in compliance with the Governing Documents. In the case of violations by non-Owners of the Association, the Association will notify the Owner who is responsible for that person's conduct, and any sanction for non-compliance will be imposed against that Owner.

Any violation of the Governing Documents shall subject the Owner to a fine, penalty or expenditure (collectively "Expenditure") suspension of voting rights (collectively "Sanctions") and to any other enforcement rights afforded the Association by the Governing Documents or law. Except in emergency situations or as otherwise provided in the Governing Documents, imposition of Sanctions shall require the Association to provide the Owner with Notice and the Right to a hearing.

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AUTHORITY TO FINE
Since the Association has the authority to adopt and enact rules, the Association has the authority to enforce rules and determine a Fine Schedule ("Monetary Penalties"), whether by fines or otherwise.

SAFETY EXCEPTION TO FINE & ENFORCEMENT CAP
The China Basin Homeowners Association may impose a monetary penalty or fine greater than $100., if the violation would, could or has resulted in an adverse health or safety impact on the common area or another Association Member (Owner) property. However, pursuant to the law, before imposing a penalty, the Board, in an open meeting, must make a written Finding specifying the adverse health or safety impact on the property. Examples of Adverse Health or Safety Impact Situations include, but are not limited to:

Smoking/Vaping in common areas,
Smoking/Vaping smoke and odors penetrating HVAC systems and open windows of neighboring units;
Secondhand marijuana smoke infiltrating another unit by any modus or means;
Speeding in association garage;
Pulling a fire alarm as a prank;
Hanging anything off or from a fire sprinkler head or device;
Modifying or removing a fire alarm or sprinkler devices inside the unit;
Parking in front of a fire hydrant around the building;
Riding or storing e-bikes or e-scooters anywhere in the common area;
Using unlicensed workers to repair plumbing and electrical within the unit;
Setting off fireworks, sparklers, or any other fire-borne effect or device
Hoarding that leads to or could lead to insect and rodent and pest infestations or smells penetrating another unit or the common area

ASSOCIATION REMEDIES
The Association may impose a pentalty, Expenditure, and/or a temporary suspension of voting or the right to use the Common Area recreational amenities; de-activation of the garage remote and/or key fob (provided that access to vehicles, owner storage areas, and units will never be denied); disqualification from voting or serving on any Association committees. Additional Sanctions include the adoption of resolutions compelling the Owner to correct, repair or replace non-complying conditions in the Owner's Unit or exclusive use Common Area, removal of an unleased animal and other actions intended to protect Common area, exclusive use common area, units or Residents.

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The amount of an Expenditure imposed to recoup any costs incurred by the Association in responding to a violation of the Governing Documents shall include all out of pocket costs thereby reasonably incurred including, without limitation, cost to correct damage, to engage contractors, including security guards; cost to other third parties to store materials, remove animals or otherwise; and amounts paid to management or legal representatives. The amount of Expenditure imposed as a fine shall be:

First Offense: $0.00
Second Offense: $0.00
Third Offence: $0.00
Fourth Offense: Call to a Hearing with the possible outcome being the Association levying a fine against the violating Homeowner of $100.00 for each like repeated offense of the same rule violation.

Each rules shall be considered a separate rule violation with its own unique or separate fine. For example: a Homeowner who stuffs boxes down the trash chute, but who also commits a smoking / vaping violation, opens up the potential of being fined $100. for each separate violation.

The Association may employ any other enforcement technique permitted by law, including a demand that disputes be resolved by mediation or arbitration or by the filing of a lawsuit. Such remedies may be taken in addition to or in lieu of any action already taken, and commencement of one remedy shall not prevent the Association from electing at a later date to pursue another remedy.